

Court No. - 3

Case :- WRIT - C No. - 44075 of 2023

Petitioner :- Smt. Hardei

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Rajneesh Kumar Sharma

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

The contention of learned counsel for the petitioner is that after the provisional assessment order dated 23.02.2023 was passed, the reply as was sent by the petitioner was not considered and the final assessment order was passed and the recovery was being done from the petitioner.

Matter requires consideration.

Learned counsel for respondent may take instructions in the matter.

Put up this case as fresh on 18.01.2024.

Till then, no coercive action shall be taken against the petitioner.

Order Date :- 21.12.2023

Sharad/-

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 44075 of 2023

Petitioner :- Smt. Hardei

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Rajneesh Kumar Sharma

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The petitioner has prayed for quashing of the recovery citation dated 26.10.2023 issued for recovery of the electricity dues in case of a theft of electricity.
2. Learned counsel for the respondent, Electricity Department, states that the impugned recovery has been withdrawn as the procedure prescribed under the U.P. Electricity Supply Code, 2005 was not followed. Therefore, nothing survives in the instant matter.
3. Accordingly, the petitioner is disposed of with liberty to the respondent, Electricity Department, to pass a fresh order of assessment after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 18.1.2024

Mukesh Kr.

(Kshitij Shailendra,J.) (Manoj Kumar Gupta,A.C.J.)